

23STCV22532 23STCV22532

County: los-angeles
Division: Civil Law and Motion
Department: 731
Hearing date: 2026-07-30
Motion: PLAINTIFF'S MOTION TO TAX COSTS
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Case Number: 23STCV22532 Hearing Date: July 30, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

MELODY VIVIAN MCCULLOUGH, an
individual,

Plaintiffs,

vs.

GENERAL MOTORS LLC, a Delaware
Limited Liability Company; and DOES 1 through 10, inclusive,

Defendants.

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CASE NO: 23STCV22532

[TENTATIVE] ORDER RE: PLAINTIFF'S
MOTION TO TAX COSTS

Dept. 731

July 30, 2026

8:30 A.M.

Matter No. 16

Moving Party: Plaintiff, Melody Vivian McCullough

Opposing Party: Defendant, General Motors LLC

Notice: OK

Background Facts

Plaintiff Melody Vivian McCullough
("Plaintiff") brought this lemon law action against Defendant General Motors
LLC ("Defendant") alleging various breaches of statutory law.

Judgment was entered in this action

on October 30, 2025, in light of this Court's grant of summary judgment in favor of Defendant. The clerk of the court gave notice of judgment to the parties one day later, on October 31, 2025.

Now before the Court is Plaintiff's

opposed May 12, 2026, motion to tax the memorandum of costs filed by Defendant on April 23, 2026.

Motion to Strike or Tax

Costs

a.

Legal Standard

A prevailing party who claims costs

must serve and file a memorandum of costs [1] within 15 days after [a] the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or [b] the date of service of written notice of entry of judgment or dismissal, or [2] within 180 days after entry of judgment, whichever is first. (Cal. Rules of Court, rule 3.1700(a)(1), brackets added.) The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case. (Ibid.)

A party that fails to apply for

costs within the time prescribed by rule 3.1700 waives those costs because the deadline for applying for costs, though not jurisdictional in the fundamental sense, is mandatory. (*Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.* (1990) 223 Cal.App.3d 924, 929 (*Hydratec*) ["The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory"]; see, e.g., *Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 426 (*Sanabria*) [holding a trial court erred by granting untimely costs, citing *Hydratec*].)

b. Parties'

Positions

Plaintiff's initial argument against

Defendant's memorandum of costs is that the memo was untimely filed based on

the Clerk's service of notice of entry of judgment on October 31, 2025, and that California Rules of Court, rule 3.1700 requires service of the memorandum of costs within 15 days of notice of entry of judgment, plus additional days for service, rendering the memo untimely.

In opposition, Defendant argues that the 15-day rule in rule 3.1700 was never triggered because notice by the clerk on October 31, 2025, did not qualify as notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5. The opposition otherwise alludes but does not directly argue or cite authority for the position that rule 3.1700's requirement that a memorandum of costs be filed within 15 days of "the date of service of written notice of entry of judgment or dismissal" is limited to notice of judgment or dismissal by a party, not the clerk.

No reply appears in the record.

c. Discussion

The Court finds Defendant has established that its Memorandum of Costs was timely filed and that Plaintiff has failed to demonstrate any basis for taxing the claimed costs.

(1) Timeliness of the Memorandum of Costs

California Rules of Court, rule 3.1700(a)(1) provides that a prevailing party claiming costs must serve and file a memorandum of costs within the earliest of: (1) 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5; (2) 15 days after the date of service of written notice of entry of judgment or dismissal; or (3) 180 days after entry of judgment.

Plaintiff contends the Clerk's October 31, 2025 electronic notice of entry of judgment triggered the fifteen-day deadline because, even if it did not satisfy Code of Civil Procedure section 664.5, it nevertheless constituted "written notice of entry of judgment" within the meaning of the second triggering provision of rule 3.1700(a)(1). The Court disagrees.

As an initial matter, Defendant correctly argues that the Clerk's October 31, 2025 notice did not constitute notice of entry of judgment "under Code of Civil Procedure section 664.5." In *Van Beurden Ins. Services, Inc. v. Customized Worldwide Weather Ins. Agency, Inc.* (1997) 15 Cal.4th 51, 64, the California Supreme Court held that a clerk's notice qualifies as notice under section 664.5 only where it affirmatively states that it is given "upon order by the court" or "under section 664.5" and is accompanied by the requisite certificate of mailing. Subsequently, *Simgel Co. v. Jaguar Land Rover North America, LLC* (2020) 55 Cal.App.5th 305, 313-315, held that the Los Angeles Superior Court's standard LACIV-123 notice—which merely references section 664.5 in the footer—does not satisfy the requirements of section 664.5.

The October 31, 2025 notice at issue is the same form considered in *Simgel*. It does not affirmatively state that it was served pursuant to section 664.5 or by order of the Court. Accordingly, the Court concludes the Clerk's notice did not trigger the first fifteen-day deadline set forth in rule 3.1700(a)(1).

The Court further concludes that the Clerk's notice did not independently trigger the second fifteen-day deadline. Rule 3.1700(a)(1) identifies two separate fifteen-day triggering events: notice served by the clerk under Code of Civil Procedure section 664.5, and service of written notice of entry of judgment. Reading the second provision to encompass every written notice issued by the clerk—including notices that do not satisfy section 664.5—would substantially render the first provision meaningless by depriving the phrase "under Code of Civil Procedure section 664.5" of any operative effect. Statutes and rules must be construed to give significance to every word and to avoid interpretations that render language surplusage. (*People v. Hudson* (2006) 38 Cal.4th 1002, 1010.)

The more reasonable construction is that rule 3.1700 distinguishes between notice served by the clerk pursuant to section 664.5 and written notice served by a party. This interpretation gives effect to each triggering provision and is consistent with the structure of California's postjudgment procedural statutes. Plaintiff cites no published authority holding that a clerk's notice which fails to satisfy section 664.5 nevertheless constitutes "written notice of entry of judgment" for

purposes of the second triggering provision. Likewise, *Kahn v. Dewey Group* (2015) 240 Cal.App.4th 227 merely addressed the computation of time following electronic service and did not consider whether a clerk's notice that fails to comply with section 664.5 nevertheless triggers the fifteen-day period.

Because the October 31, 2025

Clerk's notice did not qualify as notice under section 664.5, and because there is no evidence that any party served a written notice of entry of judgment, neither of the fifteen-day deadlines prescribed by rule 3.1700(a)(1) was triggered. Accordingly, Defendant was required only to file its Memorandum of Costs within 180 days after entry of judgment.

Judgment was entered on October 30, 2025. Defendant filed and served its Memorandum of Costs on April 23, 2026, well within 180 days after entry of judgment. The Memorandum of Costs was therefore timely.

(2) Reasonableness and Necessity of the Claimed Costs

Plaintiff alternatively argues that Defendant's Memorandum of Costs should be taxed because it fails to sufficiently itemize the claimed costs and does not establish that the costs were reasonable or necessary.

The argument is unpersuasive.

A verified memorandum of costs is prima facie evidence that the costs claimed were necessarily incurred. Where the items appear proper on their face, the burden rests on the party seeking to tax costs to demonstrate that a particular item is not recoverable, was not reasonably necessary to the litigation, or is unreasonable in amount. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131; *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.)

Defendant filed its Memorandum of Costs on the mandatory Judicial Council form and verified it under penalty of perjury as required by California Rules of Court, rule 3.1700(a)(1). Plaintiff's assertion that Defendant was required to attach invoices or other supporting documentation to the Memorandum is contrary to established

authority. A prevailing party is not required to submit bills, invoices, or receipts with its verified memorandum of costs. (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) Rather, supporting documentation is generally required only after the costs have been challenged through a motion to tax costs. (Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308.)

In response to Plaintiff's motion,

Defendant submitted documentation identifying the filing fees and electronic filing charges comprising the requested \$1,230.65. Plaintiff does not identify any particular charge that is unauthorized by statute, unnecessary to the litigation, or unreasonable in amount. Instead, Plaintiff advances only a generalized objection that Defendant's original Memorandum of Costs lacked sufficient detail.

Such a generalized objection is insufficient to overcome the evidentiary effect of a verified memorandum of costs. The filing fees and motion fees incurred in defending this action, including Defendant's first appearance fee and fees incurred in connection with its successful motion for summary judgment, are facially recoverable litigation costs under Code of Civil Procedure section 1033.5. Plaintiff has presented no evidence demonstrating that any specific cost was improperly incurred or unreasonable in amount. Accordingly, Plaintiff has failed to satisfy his burden of establishing that any portion of Defendant's claimed costs should be taxed.

d. Conclusion

Defendant timely filed and served its Memorandum of Costs within the period prescribed by California Rules of Court, rule 3.1700(a)(1). Plaintiff has further failed to demonstrate that any of Defendant's claimed costs were unauthorized, unreasonable, or unnecessary.

Accordingly, Plaintiff's Motion to Strike and/or Tax Defendant's Memorandum of Costs is DENIED.

Defendant shall recover costs in the amount of \$1,230.65.

Plaintiff is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 30, 2026 _____

MARK C. KIM

Judge of
the Superior Court